

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 22, Honorable Beth McGowen Presiding

Farris Bryant, Courtroom Clerk
191 North First Street, San Jose, CA95113
Telephone: (408) 882-2340

To contest a tentative ruling, you must:

1. Call (408) 808-6856 before 4:00 P.M. and leave a voicemail message containing the information described below, and
2. Notify the other side before 4:00 P.M. that you will appear at the hearing to contest the tentative ruling.

In the voicemail message, please state your case name, case number, the name of the attorney, who you represent (Plaintiff or specific defendant) and contact number. It would also be helpful if you could identify the specific portion or portions of the tentative ruling that will be contested.

PLEASE NOTE:

- If you do not notify the Court and/or opposing side as required by California Rule of Court, rule 3.1308(a)(1) and Civil Local Rule 8(E), the Court will not hear argument and the tentative ruling will be adopted even if all parties appear at the hearing.
- Sending an email to the department or to the Complex Clerk will no longer suffice to constitute notice to the Court of the need for a hearing regarding a tentative ruling.

Court Reporters are not provided. Please consult our Court's website, www.scscourt.org, for the rules, policies, and required forms for appointment by stipulation of privately-retained court reporters.

- **Parties can appear either in person or remotely.** All remote appearances must be made through UDC, unless otherwise arranged with the Court. Please go to <https://santaclara.courts.ca.gov/online-services/remote-hearings> to find the appropriate link. Also, please note that that you must register in advance to appear remotely.
- As a reminder, state and local Court Rules prohibit recording of court proceedings without a Court order. This prohibition applies while in the courtroom and while appearing remotely.

DATE: July 30, 2026 TIME: 1:30 P.M.

**PREVAILING PARTY SHALL PREPARE THE ORDER
UNLESS OTHERWISE STATED (SEE [RULE OF COURT 3.1312](#))**

LINE #	CASE #	CASE TITLE	RULING
LINE 1	23CV424954	Hall v. Cepheid, et al. (Class Action/PAGA)	Motion: Leave to Amend is GRANTED in part and DENIED in part Click on lines 1-2 for tentative ruling
LINE 2	23CV424954	Hall v. Cepheid, et al. (Class Action/PAGA)	Hearing: Other
LINE 3	23CV428171	Mizerski v. HCSG West LLC, et al. (PAGA)	Motions to Compel are GRANTED in part and DENIED in part, or moot, requests for Sanctions are DENIED Click on lines 3-4 for tentative ruling
LINE 4	23CV428171	Mizerski v. HCSG West LLC, et al. (PAGA)	Motion: Compel
LINE 5	24CV438933	Villalobos v. R-Bros. Painting, Inc., et al. (PAGA)	Motion: Preliminary Approval of Settlement is GRANTED Click on line 5 for tentative ruling
LINE 6	24CV452241	Michael Spatz vs Charles Liang et al	Motion: Seal is GRANTED Click on line 6 for tentative ruling
LINE 7	25CV457271	JACQUELINE JACKSON et al vs LINKEDIN CORPORATION (Class Action)	Hearing: Demurrer is OVERRULED. Due to orders for sealing, the full tentative ruling will be sent directly to the parties. Click on line 7 for tentative ruling
LINE 8	25CV461988	Cruz Juarez et al vs Century Commercial Service (Class Action / PAGA)	Motion: Preliminary Approval is GRANTED Click on line 8 for tentative ruling

LINE 9	25CV472683	Shannon McElrath vs Commure, Inc.(Class Action)	Hearing: Petition Compel Arbitration and Stay Action is DENIED Click on line 9 for tentative ruling
LINE 10			
LINE 11			
LINE 12			
LINE 13			

Calendar Lines 1-2

Case Name: *Hall v. Cepheid, et al.*

Case No.: 23CV424954

This is a representative action under the Private Attorneys General Act (“PAGA”). Plaintiff Darryl Hall alleges defendant Cepheid committed various wage and hour violations.

Before the Court is Plaintiff’s motion for leave to file a fourth amended complaint (“4AC”), and to sever his claims, which is opposed. As discussed below, the Court GRANTS Plaintiff’s motion for leave to amend, in part and DENIES it in part; the Court GRANTS Plaintiff’s motion to sever his individual FEHA claims from class and PAGA claims for trial purposes.

I. BACKGROUND

According to the allegations of the operative third amended complaint (“TAC”), Plaintiff worked for Defendant as a non-exempt employee from approximately 2021 to 2023. (TAC, ¶ 1.) Defendant failed to: provide compliant meal periods or compensation in lieu thereof; provide compliant rest breaks or compensation in lieu thereof; pay overtime wages; pay minimum wages; timely pay wages during employment; furnish accurate itemized wage statements; maintain required records; and indemnify employees for necessary expenditures. Plaintiff also asserts individual claims for violation of the Fair Employment and Housing Act (“FEHA”) and wrongful termination.

Based on the foregoing, Plaintiff initiated this action on October 26, 2023, with the filing of the Complaint which asserted the following claims: (1) failure to pay minimum wages; (2) failure to pay overtime wages; (3) failure to provide meal periods or premium pay in lieu thereof; (4) failure to provide rest periods or premium pay in lieu thereof; (5) failure to reimburse necessary business expenses; (6) failure to provide and maintain accurate records; (7) failure to pay wages when due; (8) PAGA penalties; (9) violation of California’s Unfair Competition Law; (10) discrimination in violation of FEHA; (11) harassment in violation of FEHA; (12) failure to prevent discrimination and harassment in violation of FEHA; and (13) wrongful termination in violation of public policy.¹ On March 15, 2024, he filed his first amended complaint (“FAC”), which asserted the same claims and on October 28, 2024, the Court (Hon. Adams) issued its order, which overruled the demurrer to the FAC, in part, and sustained, in part, with leave to amend. On November 13, 2024, Plaintiff filed the second amended complaint, and on December 16, 2024, he filed the operative third amended complaint (“TAC”), which asserts the same causes of action.

II. REQUEST FOR JUDICIAL NOTICE

Defendant requests judicial notice of the following items:

- (1) The court’s order in *Land Value Holdings v. City of Duarte*, Los Angeles County Superior Court, which denied leave to amend, dated October 20, 2021: Exhibit A;
- (2) The court’s order in *Citibank v. Polny*, Orange County Superior Court, which denied leave to amend, dated November 18, 2013: Exhibit B; and

¹ Causes of action ten through thirteen are asserted on an individual basis.

- (3) The court's order in *SLPR v. San Diego Unified Port Dist.*, San Diego Superior Court, which denied leave to amend: Exhibit C.

Evidence Code section 452, subdivision (d), permits judicial notice of court records. However, Defendant seeks judicial notice of the truth of the contents, which is improper. (See *Oh v. Teachers Ins. & Annuity Assn. of America* (2020) 53 Cal.App.5th 71, 79-81 [truth of contents of court records cannot be judicially noticed].)

Thus, Defendant's request for judicial notice is DENIED.

III. MOTION FOR LEAVE TO AMEND

Plaintiff moves for leave to file his 4AC.

A. Legal Standard

Code of Civil Procedure sections 473, subdivision (a), and 576 provide that the court "may, in the furtherance of justice," allow a party to amend any pleading. "It is well established that 'California courts have "a policy of great liberality in allowing amendments at any stage of the proceeding so as to dispose of cases upon their substantial merits where the authorization does not prejudice the substantial rights of others." Indeed, "it is a rare case in which 'a court will be justified in refusing a party leave to amend his [or her] pleading so that he [or she] may properly present his [or her] case.' " Thus, absent a showing of prejudice to the adverse party, the rule of great liberality in allowing amendment of pleadings will prevail." (*Board of Trustees v. Superior Court* (2007) 149 Cal.App.4th 1154, 1163 [internal citations omitted].)

"Leave to amend a complaint is thus entrusted to the sound discretion of the trial court. . . ." (*Branick v. Downey Savings & Loan Assn.* (2006) 39 Cal.4th 235, 242 [internal citations omitted].) "[I]t is an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment." (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048, (*Kittredge*)). The court does not abuse its discretion by denying leave to amend where the facts stated do not constitute a cause of action. (See *IIG Wireless, Inc. v. Yi* (2018) 22 Cal.App.5th 630, 654 (*IIG Wireless*)).

A motion to amend filed before trial must (1) include a copy of the proposed amended pleading, (2) state what allegations in the previous pleading are proposed to be deleted, and (3) state what allegations are proposed to be added to the previous pleading. (Cal. Rules of Ct., rule 3.1324(a).) The motion must also include a separate declaration that explains "(1) The effect of the amendment; (2) Why the amendment is necessary and proper; (3) When the facts giving rise to the amended allegations were discovered; and (4) The reasons why the request for amendment was not made earlier." (Cal. Rules of Ct., rule 3.1324(b).)

B. Discussion

As an initial matter, Defendant argues that Plaintiff's motion is procedurally defective because it fails to comply with California Rule of Court 3.1324(b), which requires, a declaration specifying (1) the effect of the amendment; (2) why the amendment is necessary; (3) when the

facts giving rise to the amendment were discovered; and (4) the reasons why the request was not made earlier.

In support of the motion, Plaintiff submitted the declaration of Plaintiff's counsel Aren Park ("Park Decl."). Park states that Plaintiff moved diligently to amend the complaint to include Proposed Class Representatives upon discovering that they had important, supportive testimony and upon their agreement to serve as class representatives. (Park Decl., ¶ 3.) The proposed amended complaint is made in good faith, solely for the purpose of protect Class Member' claims and bringing the case through class certification. (*Ibid.*) The declaration is deficient in that it does not state any facts regarding why amendment is necessary, when the facts giving rise to the amendment were discovered and why the request was not made earlier. (See Cal. Rules of Ct., (See Cal. Rules of Ct., 3.1324(b)(2)-(4).) Nevertheless, the motion itself states that the parties agreed to stay formal discovery after the filing of the TAC on December 16, 2024, and to pursue resolution of the action through mediation. (Motion, p. 2:18-19.) The parties agreed the Defendant would produce informal discovery for the mediation. (Motion, p. 2:19-22.) On May 4, 2026, the parties attended the mediation, which did not result in a settlement. (Motion, p. 24-25.) Subsequently, the parties agreed to provide all outstanding discovery requests. (Motion, pp. 2:27-3:1.) Plaintiff has since identified Timonthy Daniels ("Daniels") and Sandra Love ("Love") (collectively, "Proposed Class Representatives") as additional suitable class representatives. (Motion, p. 3:3-5.) Thus, Plaintiff's counsel is admonished for failing to comply with the procedural requirements and warned that failure to do so in the future may result in a different outcome. The Court will now turn to the substance of the motion. (See *Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 806 [courts have a policy favoring disposition of cases on the merits rather than on procedural grounds].)

Plaintiff argues that the Proposed Class Representatives will adequately represent the class because they are members of the putative Class, possess the same interests as the Class, and suffered the same injuries as the Class. (Motion, p. 5:17-19.) Plaintiff further argues that Defendant will not be prejudiced by the addition of Proposed Class Representatives. (Motion, p. 5:1-7.) In opposition, Defendant argues that Plaintiff's motion should be denied due to his undue delay. (Opp., p. 6:20-21.) Love filed her separate action in 2024 and Plaintiff had notice of her Complaint and did not move to add her as an addition Class representative until two years later. (Opp., p. 7:10-20.)

Love filed her separate class action in April 2024, and the parties formally stayed discovery in December 2024 after Plaintiff Hall filed his TAC until after the mediation in May 2026. Thus, the Court is not persuaded that there was undue delay in Plaintiff bringing his request for leave to amend.

Next, Defendant argues that the motion should be denied because it will suffer severe prejudice if Plaintiff is permitted to amend his pleading. (Opp., p. 8:13-15.) It contends that its discovery in this matter has been limited to the Sunnyvale location (where Plaintiff Hall worked) and it has not interviewed or collected evidence from the locations where Daniels or Love worked and many of their supervisors are no longer employed by Defendant, which hinders its ability to collect information and documents for its defense. (Opp., p. 8:15-23.)

"Leave to amend a complaint is thus entrusted to the sound discretion of the trial court." (*Branick, supra*, 39 Cal.4th at p. 242.) "[I]t is an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment." (*Kittredge, supra*,

213 Cal.App.3d at p. 1048.) Prejudice exists where the amendment would require delaying the trial, result in the loss of critical evidence, add costs of preparation, or increase the burden of discovery, etc. (See *Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 486-488; see also *Melican v. Regents of the Univ. of Calif.* (2007) 151 Cal.App.4th 168, 176.)

Here, the proposed class is defined as “[a]ll person who worked at least one 3.5 hour shift as a non-exempt employee in the State of California from the period of four years prior to the filing of the Action and the date of trial.” (TAC, ¶ 14; Proposed 4AC, ¶ 16.) Daniels was a manufacturing associate from May 2020 to July 2022 as a non-exempt, hourly employee. (Motion, p. 5:8-10.) He was subject to the same alleged failures to provide compliant meal and rest periods, and wage statements. (Motion, p. 5:10-12.) Similarly, Love was employed as a manufacturing associate from May 2022 to March 2024 as a non-exempt, hourly employee and similarly she was subject to the alleged failures by Defendant. (Motion, p. 5:12-16.) As Proposed Class Representatives are already class members, it does not appear that the additional discovery will be so burdensome as to prejudice Defendant. A trial date has not yet been set for this matter. The parties are still setting the schedule for a class certification motion. Thus, it does not appear to the Court that Defendant will be prejudiced by the addition of Proposed Class Representative.

With regard to Daniels, Defendant argues that adding him as a class representative is futile because his PAGA claim is time-barred. (Motion, p. 10:14-16.) Plaintiff fails to provide any argument in opposition to this point.

The statute of limitations for a PAGA claim is one year. (See Code Civ. Proc., § 340, subd. (a); see also *Brown v. Ralphs Grocery Co.* (2018) 28 Cal.App.824, 839.) “[L]eave to amend may be denied where permitting an amendment would be futile [citation], e.g., where the amendment does not state a cause of action. [Citations.]” (*Singh v. Lipworth* (2014) 227 Cal.App.4th 813, 828; see *Heckendorn v. City of San Marino* (1986) 42 Cal.3d 481, 489 [leave to amend should be denied where no liability exists under substantive law].)

Daniels’ last day of employment was on July 1, 2022. (Declaration of Angela Rodenburg, ¶ 5.) Defendant contends he did not file a timely PAGA claim with the LWDA. However, there are no facts or evidence before the Court at this time regarding Daniel’s notice to the LWDA or lack thereof. Thus, the Court cannot conclude at this time and amendment would be futile and therefore, the motion cannot be denied on this basis.

As to Plaintiff Love, Defendant argues amendment is futile because she has another action pending in another court and thus, it will be successful on a demurrer against her. However, the Proposed 4AC has not yet been filed, thus, the Court will not address demurrer-specific arguments on this motion. Moreover, it appears Plaintiff Love’s case has been stayed since 2024. Thus, the Court cannot conclude at this time that her addition to this action would be futile. Consequently, the motion cannot be denied on this basis.

Lastly, Defendant contends that Plaintiff asserts the following two new theories of liability: (1) Defendant’s failure to incorporate non-discretionary bonuses into the regular rate of pay calculation for overtime, meal periods premiums, and rest premiums; and (2) Defendant’s failure to pay sick leave by failing to include incentive pay in the regular rate of pay calculation—which expand the scope of the case and would require substantial new discovery. (Opp., p. 9:3-12.)

Generally new legal theories may be added if they relate to the same general set of facts. (See *Kittredge, supra*, 213 Cal.App.3d at p. 1048, quoting *Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 489.)

The TAC, within the second cause of action for failure to pay overtime wages, alleges “Plaintiff and Class Members who work more than eight hours in a day or more than forty hours in a workweek are to be paid at the rate of time and one-half (1 ½) for all hours worked in excess of eight hours in a day or more than forty hours in a workweek. An employee’s regular rate of pay including remuneration for employee paid to, or on behalf of, the employee including commissions, non-discretionary bonuses, and incentive pay.” (TAC, ¶ 31.) Thus, this theory is not entirely new and the Court will permit Plaintiff leave to assert this theory.

On the other hand, the failure to pay sick leave is asserted for the first time under the PAGA claim (the eighth cause of action) in the proposed 4AC. (See Proposed 4AC, ¶ 76, fn. 4.) Moreover, Plaintiff does not provide any facts as to how or when facts were discovered to support the sick leave claim nor does he identify the facts to support it. Furthermore, Labor Code section 246 is not included in Plaintiff’s notice to the LWDA, nor does Plaintiff state whether an amended notice was sent. Therefore, to the extent, Plaintiff seeks to assert a violation of Labor Code section 246, it is denied. (See *IIG Wireless, Inc. v. Yi* (2018) 22 Cal.App.5th 630, 654 [The court does not abuse its discretion by denying leave to amend where the facts stated do not constitute a cause of action].)

Thus, the Court will permit Plaintiff to file a 4AC, which adds Proposed Class Representatives to this action and asserts the failure to include non-discretionary bonuses theory but not the sick leave theory.

Accordingly, Plaintiff’s motion is GRANTED, in part and DENIED, in part.

IV. MOTION TO SEVER PLAINTIFF’S INDIVIDUAL FEHA CLAIMS

Plaintiff moves to sever his individual FEHA claims from the class and representative claims and proceed with them separately. Defendant argues that Plaintiff’s notice fails to comply with the notice requirements. (Opp., p. 12:7-12.) The Court agrees.

Code of Civil Procedure section 1010 states that a notice of motion must indicate “the grounds upon which [the motion] will be made, and the papers, if any, upon which it will be based.” California Rules of Court, rule 3.1110(a) states that “[a] notice of motion must state in the opening paragraph the nature of the order being sought and the grounds for issuance of the order.”

Plaintiff’s notice of motion provides “[Plaintiff] will apply to the Court for leave to amend the Third Amended Complaint to add additional class representative plaintiffs. No other substantive amendment is contemplated by this motion. Pursuant to Sections 473(a)(1) and 576 of the California Code of Civil Procedure, just cause exists to add [Daniels] and [Love] as Class Representatives, as the proposed amendment would not make substantive changes to the definition of the class or the class claims or delay trial in any way; instead it would add additional class representatives to represent the Class for certification of trial.” (Motion, p. 1:5-11.) The footer states “notice of motion and motion for leave to amend complaint,” however, the caption provides “Plaintiff’s notice of motion and motion for leave to amend complaint to

add additional class representatives and sever claims.” Plaintiff’s notice of motion does not comply with Code of Civil Procedure section 1010 and California Rule of Court, rule 3.1110(a) to the extent Plaintiff seeks severance. Plaintiff’s counsel is again admonished for failing to comply with procedural requirements and is ordered to ensure that they comply with them going forward as future failure to comply may be met with a different result. Nevertheless, the notice of motion and motion are contained in one single document, thus, Defendant was adequately apprised of the argument and provided a substantive response to it.

Plaintiff cites Code of Civil Procedure section 1048 as the basis of the request.

Code of Civil procedure 1048, provides,

- (a) When actions involving a common question of law or fact are pending before the court, it may order a joint trial of any or all the matters in issue in the action; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay.
- (b) The court, in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy, may order a separate trial of any cause of action, including a cause of action asserted in a cross-complaint, or of any separate issue or of any number of causes of action or issues, preserving the right of trial by jury required by the Constitution or a statute of this state or of the United States.

(Code Civ. Proc., § 1048.)

Plaintiff argues his FEHA claims are distinct in nature from the class wage-and-hour claims. (Motion, pp. 7:22-8:3.) Plaintiff further argues that severing the FEHA claims would not impose delay or prejudice to Defendant. (Motion, p. 8:4-5.) While Plaintiff could have been clearer about the relief sought with this request, it appears that Plaintiff seeks bifurcation of his individual FEHA claims within this action for trial purposes.

The objection of bifurcation is to avoid wasting time and money on the trial. (See e.g., *Horton v. Jones* (1972) 26 Cal.App.3d 952, 954.) In determining whether bifurcation is appropriate, courts often look to other facts aside from whether the case presents separate issues. For example, courts will consider the complexity of the issue, the risk of jury confusion, judicial economy, and whether the claims present separate and independent issues. (See *Downey Sav. & Loan Ass’n v. Ohio Cas. Ins. Co.* (1987) 189 Cal.App.3d 1072, 1086.) “Granting or denying a motion for separate trials lies within the trial court’s sound direction and is subject to reversal on appeal only for clear abuse.” (*Grappo v. Coventry Financial Corp.* (1991) 235 Cal.App.3d 496, 504.)

The claims under FEHA are legally distinct from violations of the Labor Code and they require different supporting evidence, and different questions of fact—therefore, having the claims heard together may result in jury confusion. Moreover, Plaintiff contends that he has provided formal discovery as to his individual claims, including documents regarding his allegations of racial discrimination, harassment, and efforts to obtain medical accommodations. (See Motion, p. 8:5-8.) Thus, the Court is persuaded that bifurcation of Plaintiff Hall’s individual FEHA claims for trial purposes would further the interest of judicial economy

because would allow finder of fact to focus on the distinct issues of law and fact or each group of claims (i.e, class/PAGA claims and FEHA claims). Accordingly,, Plaintiff's request to sever his individual FEHA claims from the class and PAGA claims for trial purposes is GRANTED.

V. CONCLUSION

Plaintiff's motion for leave to amend is GRANTED, IN PART and DENIED, in part; his motion to sever his individual FEHA claims from class and PAGA claims for trial purposes is GRANTED. Plaintiff shall make the necessary changes and file the 4AC within 10 days of this order.

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Calendar Lines 3-4

Case Name: *Mizerski v. HCSG West LLC, et al.*

Case No.: 23CV428171

This is a representative action under the Private Attorneys General Act. Plaintiff Patrick Mizerski alleges that defendant HCSG West LLC and Healthcare Services Group, Inc. committed various wage and hour violations.

Before the Court is (1) Plaintiff's motion to compel further responses to requests for production ("RFP") Set three and sanctions; and (2) Plaintiff's motion to compel further responses to special interrogatories (SROG") Set two and sanctions, which are both opposed.

As discussed below, Plaintiff's motion to compel further responses to his RFPs is GRANTED, in part and MOOT, in part; Plaintiff's motion to compel further responses as to his SROGs is DENIED, in part and MOOT, in part. The parties' respective requests for sanctions are DENIED.

VI. BACKGROUND

According to the allegations of the operative Complaint, Defendant failed to: pay wages for all hours worked; pay overtime wages; provide compliant meal periods or compensation in lieu thereof; provide rest periods or compensation in lieu thereof; maintain accurate pay payroll records; pay sick wages; and reimburse for necessary business expenses.

Based on the foregoing, Plaintiff initiated this action on December 27, 2023, with the filing of the Complaint, which asserts one cause of action for civil penalties under PAGA.

VII. MOTION TO COMPEL FURTHER RESPONSES TO RFP, SET THREE

Plaintiff moves to compel further responses to RFP, Set Three Nos. 32 (work schedule), 33 (Aggrieved Employees' time records), 36 (training policies/procedures), 37 (training materials), 42 (Aggrieved Employees' payroll records), and 43 (Aggrieved Employees' wage statement records). (Motion, p. 2: 1-7.) He further moves for monetary sanctions in the amount of \$6,150.

C. Legal Standard

A party propounding a request for production may move for an order compelling a further response if it deems that a statement of compliance is incomplete, a representation of inability to comply is inadequate, or an objection is without merit. (Code Civ. Proc., § 2031.310, subd. (a).) The motion must set forth "specific facts showing good cause justifying the discovery sought by the demand." (Code Civ. Proc., § 2031.310, subd. (b)(1); *Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98 (*Kirkland*).) Good cause is established simply by a fact-specific showing of relevance. (*Id.* at 98.) If good cause is shown, the burden shifts to the responding party to justify any objections. (*Ibid.*)

D. Meet and Confer

Code of Civil Procedure section 2031.310, provides, the motion “shall be accompanied by a meet and confer declaration under Section 2016.040.” (Code Civ. Proc., § 2031.310, subd. (b)(2).)

On April 30, 2025, Plaintiff propounded RFP, Set three and SROG, Set two on Defendant. (Declaration of Christine T. LeVu (“LeVu Dec.”), ¶ 2.) On April 13, 2026 and June 4, 2026, Defendant served supplemental responses as to RFP, Set three. (LeVu Decl., ¶ 8.)

The parties exchanged emails regarding their dispute about wage statement documents and on May 7, 2026, Plaintiff proposed a compromise and requested a 33% sample of wage statements. (LeVu Decl., ¶¶ 9-10.) However, Defendant rescinded its offer the following day and stated that it would only provide Plaintiff’s wage statements as a exemplar. (LeVu Decl., ¶ 10.) On May 14, 2026, the Court issued its order which granted Plaintiff leave to file the instant motion. (LeVu Decl., ¶ 11.) The parties met and conferred on June 24 and 29, 2026, however they were unable to resolve the dispute. (LeVu Dec., ¶¶ 12-14.) Plaintiff details sufficient meet and confer efforts. Plaintiff also filed three informal discovery conference (“IDC”) statements.

E. Discussion

The discovery sought by Plaintiff pertains to Set Three Nos. 32 (work schedule), 33 (Aggrieved Employees’ time records), 36 (training policies/procedures), 37 (training materials), 42 (Aggrieved Employees’ payroll records), and 43 (Aggrieved Employees’ wage statement records). (Motion, p. 2: 1-7.)

On April 13, 2026, Defendant provided a verified response that it would meet and confer regarding a limited sample of wage statements. (LeVu Decl., ¶ 8.) On May 1, 2026, Defendant responded to Plaintiff meet and confer email and stated,

Setting aside the fact that Plaintiff’s wage statement claim is merely a derivative one, and in turn, there is no relevancy to any wage statements, our prior agreement with Brooke, as you note below, was that **your side would make a proposal for the production of a sampling of wage statements after you had a change to review the electronic payroll data**, which you now had for months.
(LeVu Decl., ¶ 9; Exh. 8.)

On May 7, 2026, Plaintiff proposed a compromise and requested a 33% sample of the wage statements and provided Defendant with a list of Aggrieved Employees whom Plaintiff would accept as a sample. (LeVu Decl., ¶ 10.) However, the following day, Defendant rescinded its offer and would only produce Plaintiff’s wage statements as an exemplar. (*Ibid.*)

1. RFP No. 32

RFP No. 32 provides, “Please produce all work schedules for the AGGRIEVED EMPLOYEES during the RELEVANT TIME PERIOD.” Here, the work schedules are relevant to Plaintiff’s claims. Thus, Plaintiff establishes good cause for seeking these documents and the burden shifts to Defendant to justify any objections. (See *Kirkland, supra*, 95 Cal.App.4th at p. 98.)

Defendant's Second Supplemental Response identifies the undue burden of producing documents in response to RFP No. 32.

Indeed, it is not enough to just generally assert that responding to a request is unduly burdensome; a party objecting on this basis must make a *particularized* showing of facts demonstrating hardship, including *evidence* showing the quantum of work required to respond. (See *West Pico Furniture Co. v. Superior Court* (1961) 56 Cal.2d 407, 417-418.) Here, Defendant provides the declaration of Matthew Schulman ("Schulman"), a Director of Operations for Defendant. Schulman states that Defendant does not have standardized practices or procedures for how employee schedules are made or maintained. (Schulman Decl. ¶ 6.) Since October 2022, Defendant has employed hourly employees at approximately 490 separate accounts, each with its own dedicated manager. (*Ibid.*) He further states that searching for scheduling records at hundreds of facilities would be a manual process and require an estimated 2,450 hours to 4,900 hours of employee labor. (Schulman Decl., ¶ 7.) Combined with the labor cost of approximately \$30/hour for managerial employees, the total estimated cost to attempt to gather responsive documents would be approximately \$73,500 to \$147,000. (*Ibid.*) Thus, Defendant justifies its objection to the request. Accordingly, Plaintiff's motion to compel further response is DENIED.

2. RFP Nos. 33 and 42

RFP Nos. 33 and 42 pertain to time and payroll records. Given the theories asserted in this action, these records are relevant.

Plaintiff's RFP defined "relevant time period" as "the time period of September 8, 2022 to the present." The supplemental responses Defendant provided cut-off on September 6, 2025. However, Defendant states that "[a]fter a diligent search and reasonably inquiry, Defendant is unable to produce any further 'time records' for such 'Aggrieved Employees' for the specified time because, as far as Defendant is aware, no further records have ever existed." (Plaintiff's Separate Statement, RFP, No. 33, Second Supp. Responses.) Moreover, Defendant contends the records after September 6, 2025 are "after-acquired documents." Generally, a responding party has no continuing duty to supplement an interrogatory answer with later-acquired information if the answer was initially correct and complete. (See Code Civ. Proc., § 2030.060, subd. (g); see also *Biles v. Exxon Mobil Corp.* (2004) 124 Cal.App.4th 1315, 1328-1329.) This lack of continuing duty is also implied for demands for inspection, as a propounding party may propound supplemental demands. (See Code Civ. Proc., § 2031.050.) Here, Defendant fails to establish that any unproduced records after September 6, 2025, were indeed after-acquired. The agreed upon PAGA period runs through the present. Thus, Defendant fails to show that the necessary records were not within its possession, custody, or control by June 4, 2026.

Nevertheless, on June 30, 2026, Plaintiff served supplemental requests for production of documents ("Supp. RFP"), which provides "Please review your responses to all demands and for inspection and production of documents previously served on you in the action and produce for inspection, photographing, and copying *any later-acquired or discovered* documents in response thereto." (Declaration of Remy Kessler ("Kessler Decl."), Exh. 2 [emphasis added].) Defendant states it "is in the process of responding to the Supplemental Requests and is gather documents after September 5, 2025 to comply with its discovery obligations." (Opp., p.8:17-24.) Thus, it appears the motion is MOOT as to these requests.

3. RFP Nos. 36-37

RFP No. 36, requests, “[f]or the RELEVANT TIME PERIOD, produce all DEFENDANT’S training policies and procedures applicable to the AGGRIEVED EMPLOYEES.” RFP No. 37, requests, “[f]or the RELEVANT TIME PERIOD, produce all training materials provided by DEFENDANT to the AGGRIEVED EMPLOYEES.”

In its opposition, Defendant contends that it has produced the responsive documents. (Opp., pp. 11:25-12:3.) In reply, Plaintiff argues the responses are non-compliant because they seek to narrow the scope of the training policies to “in service training” only. (Reply, p. 2:25-27.) After reviewing Defendant’s Fourth Supplemental Responses (see LeVu’s Declaration in Support of Plaintiff’s Reply, Exh. 13), the Court agrees. The requests pertain to *all training* materials and without explanation, Defendant narrowed the scope. Thus, Plaintiff’s motion as to RFP Nos. 36-37 is GRANTED. Defendant is ordered to provide verified supplemental responses within 20 days of this order specifying whether the “in service” training materials constitute all responsive training materials. If they do not, Defendant shall produce all responsive documents within 30 days of this order.

4. RFP No. 43

RFP No. 43, requests, “[a]ll copies of the actual wage statements that were provided to the AGGRIEVED EMPLOYEE during the RELEVANT TIME PERIOD.”

Plaintiff requests a 33% sample, however, Defendant contends that this would require production of approximately 70,000 wage statements. (Opp., p. 9:22-24.) Defendant further contends that each wage statement will require individual redactions and it is not proportionate to the needs of the case, especially considering the discovery that has already been produced. (for over 6,400 employees). The Court agrees that 33% is excessive here. However, the Court will require Defendant to produce a limited sample of wage statements selected by Plaintiff so that Plaintiff can verify facial compliance with Labor Code section 226, subd. (a).

Thus, Plaintiff’s motion to compel further responses as to RFP No. 43 is GRANTED. Within 10 days of this order, Plaintiff shall provide the list of employees to Defendant and in turn, within 30 days of this order, Defendant shall produce the wages statements to Plaintiff.

5. Sanctions

Here both parties move for sanctions against the other.

“The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2030.300, subd. (d); see also Code Civ. Proc., § 2031.310, subd. (h) [same]; § 2033.290, subd. (d) [same].) “[T]he phrase ‘substantial justification’ has been understood to mean that a justification is clearly reasonable because it is well grounded in both law and fact.” (*Doe v. United States Swimming, Inc.* (2011) 200 Cal.App.4th 1424, 1434 (*Doe*).)

i. Plaintiff’s Request

Plaintiff seeks sanctions in the amount of \$6,150. Plaintiff argues Defendant cannot claim substantial justification for failing to provide discovery responses. In opposition, Defendant contends that it met and conferred with Plaintiff in good faith; attempted to resolve the disputes without involving the Court. (Opp., p. 11:6-14.) Here, Defendant provided responses or informed Plaintiff that it would be providing responses and subsequently served supplemental responses at least twice. Therefore, the Court cannot conclude that Defendant acted without substantial justification. Consequently, the Court finds that sanctions are not warranted. Plaintiff's request is DENIED.

ii. Defendant's Request

Defendant requests \$4,640 in sanctions against Plaintiff and his counsel for unnecessarily bring discovery motions. (Opp., p. 13:5-11.) Here, Plaintiff details sufficient meet and confer efforts and provides evidence of communications and efforts to resolve the disputes. The Court finds Plaintiff acted with substantial justification. Consequently, sanctions against Plaintiff and his counsel are not warranted. Consequently, Defendant's request for sanctions is DENIED.

VIII. MOTION TO COMPEL FURTHER RESPONSES SROG SET TWO

Plaintiff moves for an order compelling further responses to SROG Nos. 24 (PAGA List), 37 (pay codes), and 38 (pay explanations).

A. Legal Standard

A party propounding interrogatories and requests for admission may move for an order compelling further responses if it deems an answer is evasive or incomplete and/or an objection is without merit or too general. (Code Civ. Proc., §§ 2030.300, subd. (a) and 2033.290, subd. (a).) The statutes do not require any showing of good cause in support of such a motion. (See *id.*, §§ 2030.300 and 2033.290; see also *Coy v. Superior Court* (1962) 58 Cal.2d 210, 220–221 (*Coy*).) The burden is on the responding party to justify any objections or failure to fully answer. (*Coy, supra*, 58 Cal.2d at pp. 220–221.) Objections must be tailored to each discovery request. (*Scottsdale Inc. Co. v. Super. Ct.* (1997) 59 Cal.App.4th 263, 275; *Standon Co. v. Super. Ct.* (1990) 225 Cal.App.3d 898, 901 [construing the objection of “vague, ambiguous, and unintelligible” as a nuisance objection].)

B. Meet and Confer

Code of Civil Procedure section 2030.300, provides, the motion “shall be accompanied by a meet and confer declaration under Section 2016.040.” (Code Civ. Proc., § 2030.300, subd. (b)(1).)

As detailed above, Plaintiff filed three IDC statements and attempted to meet and confer with Defendant regarding the outstanding discovery. On May 14, 2026, the Court issued an order permitted Plaintiff to file the instant motion. Thus, the Court finds sufficient meet and confer efforts.

C. Discussion

Plaintiff moves for an order compelling further responses to SROG Nos. 24 (PAGA List), 37 (pay codes), and 38 (pay explanations).

1. SROG No. 24

SROG No. 24 pertains to the PAGA Group List and provides, “please IDENTIFY in electronic manipulable spreadsheet format, all AGGRIEVED EMPLOYEES.”

Defendant states it has provided supplemental responses referencing the production of job titles, rates of pay, and dates of employment. (Opp., p. 7:20-21.)

Thus, Plaintiff’s motion as to SROG No. 24 is MOOT.

2. SROGS No. 37-38 (pay codes and explanations)

SROG No. 37 provides, “please state all pay codes used by DEFENDANT on wage statements provided to the AGGRIEVED EMPLOYEES...” SROG No. 38, provides, “for each pay code listed in response to Special Interrogatory No. 37, please provide an explanation regarding what each pay code means.”

Defendant argues it has sufficiently responded because the wage statements use “Earnings descriptions” and it has identified and explained. Defendant further argues that Plaintiff attempts to rewrite the interrogatories. (Opp., pp. 7:26-8:20.) Here, the SROGS clearly request pay codes “used by DEFENDANT on wage statements provided to AGGRIEVED EMPLOYEES.” Thus, Defendant has provided code-compliant responses. If Plaintiff seeks other forms of wage information, it may accordingly propound discovery, however, the Court declines to compel Defendant to provide further responses to an interrogatory that was not asked.

Accordingly, Plaintiff’s motion to compel further responses to SROGS Nos. 37-38 is DENIED.

3. Sanctions

Both parties move for sanctions.

“The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2030.300, subd. (d).) “[T]he phrase ‘substantial justification’ has been understood to mean that a justification is clearly reasonable because it is well grounded in both law and fact.” (*Doe, supra*, 200 Cal.App.4th at p. 1434.)

i. Plaintiff’s Request

Plaintiff moves for sanctions in the amount of \$5,500 on the grounds that Defendant’s failure to response to the requests were without merit. As explained about, the Court was

persuaded by Defendant's arguments regarding SROG Nos. 37 -38. Thus, it finds that Defendant acted with substantial justification. Thus, Plaintiff's request for sanctions is DENIED.

ii. Defendant's Request

Defendant moves for sanctions against Plaintiff and his counsel in the amount of \$4,262 based on misuse of the discovery process.

The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct. The court may also impose this sanction on one unsuccessfully asserting that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both. If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.

(Code Civ. Proc. § 2023.030, subd. (a).)

The Court finds that Plaintiff acted with substantial justification and therefore, sanctions are not warranted here. Thus, Defendant's request for sanctions is DENIED.

IX. CONCLUSION

Plaintiff's motion to compel further responses to RFP Nos. 33 and 42 is MOOT; DENIED as to No. 32; it is GRANTED as to Nos. 36, 37, & 43; and the parties' respective requests for sanctions are DENIED. Plaintiff's motion to compel further responses as to SROG No. 24 is MOOT; DENIED as to SROG Nos. 36-37; and the parties' respective requests for sanctions are DENIED.

The Court will prepare the order.

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Calendar Line 5

Case Name: *Villalobos v. R-Bros. Painting, Inc., et al.*

Case No.: 24CV438933

This is a representative action under the Private Attorneys General Act (“PAGA”). Plaintiff Juan Manuel Villalobos alleges defendants R-Bros. Painting, Inc. (“R-Bros.”), R. Brothers Waterproofing, Inc. (“R. Brothers Waterproofing”), Rod Rodriguez (“Rodriguez”) committed various wage and hour violations.

Before the Court is Plaintiff’s motion for approval of PAGA settlement, which is unopposed. As discussed below, the Court GRANTS the motion.

I. BACKGROUND

According to the allegations of the operative Complaint, Plaintiff was employed by R-Bros. as a painter from May 2023 through his termination in January 2024. (Complaint, ¶ 8.) During his employment, Plaintiff was classified as an hourly, non-exempt employee. (*Ibid.*) Defendants failed to, among other things: compensate for all hours worked; pay minimum and overtime wages; provide rest breaks or compensation in lieu thereof; provide meal breaks or compensation in lieu thereof; reimburse for necessary business expenses.

Based on the foregoing, Plaintiff initiated this action on May 14, 2024, with the filing of the Complaint, which asserts the following causes of action: (1) failure to compensate for all hours worked; (2) failure to pay minimum wages; (3) failure to pay overtime (4) failure to provide accurate wage statements; (5) failure to pay wages owed every pay period; (6) failure to give rest breaks; (7) failure to give meal breaks; (8) failure to reimburse for business expenses; (9) failure to pay wages when employment ends; (10) PAGA; and (11) violation of Business & Professions Code section 17200.

Plaintiff now moves for an order approving the PAGA settlement agreement between Plaintiff, R-Bros Painting and Rodriguez (collectively, “Defendants”).

II. LEGAL STANDARD FOR APPROVING PAGA SETTLEMENT

Under PAGA, an aggrieved employee may bring a civil action personally and on behalf of other current or former employees to recover civil penalties for Labor Code violations. (*Iskanian v. CLS Transp. Los Angeles, LLC* (2014) 59 Cal.4th 348, 380, overruled on other grounds by *Viking River Cruises, Inc. v. Moriana* (2022) 596 U.S. 639 [2022 U.S. LEXIS 2940].) 75 percent of any penalties recovered go to the Labor and Workforce Development Agency (LWDA), leaving the remaining 25 percent for the employees. (*Ibid.*) PAGA is intended “to augment the limited enforcement capability of [LWDA] by empowering employees to enforce the Labor Code as representatives of the Agency.” (*Id.* at p. 383.) A

judgment in a PAGA action binds all those, including nonparty aggrieved employees, who would be bound by a judgment in an action brought by the government. (*Id.* at p. 381.)

Labor Code section 2699, subdivision (l)(2) provides that “[t]he superior court shall review and approve any settlement of any civil action filed pursuant to” PAGA. The court’s review “ensur[es] that any negotiated resolution is fair to those affected.” (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 549.) “[C]lass certification is not required” in this context as in a class action. (*Haralson v. U.S. Aviation Servs. Corp.* (N.D. Cal. 2019) 383 F. Supp. 3d 959, 971 (*Haralson*).)

Similar to its review of class action settlements, the Court must “determine independently whether a PAGA settlement is fair and reasonable,” to protect “the interests of the public and the LWDA in the enforcement of state labor laws.” (*Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 76–77 (*Moniz*).) It must make this assessment “in view of PAGA’s purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws.” (*Id.* at p. 77; see also *Haralson, supra*, 383 F. Supp. 3d at p. 971 [“when a PAGA claim is settled, the relief provided for under the PAGA [should] be genuine and meaningful, consistent with the underlying purpose of the statute to benefit the public”], quoting LWDA guidance discussed in *O’Connor v. Uber Technologies, Inc.* (N.D. Cal. 2016) 201 F.Supp.3d 1110 (*O’Connor*).)

The settlement must be reasonable in light of the potential verdict value. (See *O’Connor, supra*, 201 F.Supp.3d at p. 1135 [rejecting settlement of less than one percent of the potential verdict].) But a permissible settlement may be substantially discounted, given that courts often exercise their discretion to award PAGA penalties below the statutory maximum even where a claim succeeds at trial. (See *Viceral v. Mistras Group, Inc.* (N.D. Cal., Oct. 11, 2016, No. 15-CV-02198-EMC) 2016 WL 5907869, at *8–9.)

III. PLAINTIFF’S INVESTIGATION, SETTLEMENT PROCESS, AND THE PARTIES’ AGREEMENT

On February 19, 2024, Plaintiff gave written notice to the Labor and Workforce Development Agency (“LWDA”) and Defendants. On May 14, 2024, he initiated this instant action with the filing of the Complaint. The parties conducted informal discovery and Defendant produced Plaintiff’s personnel file, time and payroll data for Plaintiff, and time and payroll records for 15 aggrieved employees.

The parties conducted investigation of the facts and law before and after the lawsuit was filed. On May 15, 2025, the parties attended a full-day mediation session with experienced mediator, Laurie Saldana, which resulted in the settlement (the “Settlement”) before the Court.

Pursuant to the Settlement, Defendant will pay a non-reversionary gross settlement of \$65,000, which is comprised of \$21,666.66 in attorneys’ fees, \$8,004.80 in attorneys’ fees, and \$3,500 in settlement administration costs. The net settlement amount will be approximately \$31,828.54 and it will be distributed 75% (\$23,871.41) to the LWDA and 25% to “PAGA Members, who are defined as “all current and former employees, including Plaintiff, who

worked for Defendant R-Bros. Painting, Inc. at any time during the PAGA Period [March 11, 2023 to June 9, 2025].” The individual payments will be considered a civil penalty. There are approximately 76 PAGA Members.

In exchange for settlement, PAGA Members will release:

[A]ll claims for PAGA penalties that were alleged, or reasonably could have been alleged, based on the PAGA Period facts stated in the Action or any PAGA Notice.

The release is appropriately tailored to the allegations at issue, and does not release any claims other than those for PAGA penalties. (See *Amaro v. Anaheim Arena Management, LLC* (2021) 69 Cal.App.5th 521, 537; *Moniz, supra*, 72 Cal.App.5th at p. 82 [release of “all known and unknown claims under PAGA ... that were or could have been pled based on the allegations of the Complaint” was appropriately approved].)

IV. DISCUSSION

A. Potential Verdict Value

In the Complaint, Plaintiff alleges meal period violations, rest break violations, unpaid wages, failure to pay overtime wages, failure to pay timely wages, and failure to maintain records. Plaintiff asserts that the strongest claims at the meal period violations and that Defendants rounding work hours for a portion of the PAGA Period.²

Plaintiff’s counsel calculated Defendants maximum exposure as follows: \$144,150 (meal period violations); and \$302,500 (minimum wage/rounding claim)—totaling \$446,650.

Plaintiff’s counsel then considered the fact that Defendants had a meal break policy and the fact that there was no indication that Defendants prevented employees from taking meal breaks. Thus, Plaintiff worked from a 65% chance of success on the merits. Accordingly, the realistic exposure for the meal period claim is \$93,697.50. With regard to the rounding claim, Plaintiff counsel considered Defendants’ defense, particularly that the entrusted employees with filing out their own timesheets and the company took employees at their word that the timesheets were correct. Thus, Plaintiff worked from a 50% chance of success on the merits. Thus, Defendants’ realistic exposure for the claim is \$151,250. Thus, Defendants’ realistic exposure is \$244,947.50.

The gross settlement amount represents approximately 26.5% of the maximum exposure. This is within the percentage range typically approved by courts. (See *Cavazos v. Salas Concrete, Inc.* (E.D. Cal., Feb. 18, 2022, No. 1:19-cv-00062-DAD-EPG) 2022 U.S. Dist. LEXIS 30201, at *41-42 [citing cases approving settlements in the range of 5 to 35 percent of the maximum potential exposure].)

Given this, as well as the risks attendant to proceeding to trial, Defendants’ defenses and the likelihood that PAGA penalties would be significantly reduced in line with numerous

² Plaintiff states there would be issues with proof as to the remaining claims.

appellate decisions, the Court finds that the proposed settlement is fair to those affected and is genuine, meaningful, and reasonable in light of the statute's purposes.

B. Attorneys' Fees

While the PAGA statute does not expressly require judicial review of claimed attorney fees, the Court believes it cannot adequately fulfill its statutory duty to review the penalties associated with PAGA settlements without also considering attorney fees. The Court thus finds that it must scrutinize the attorney fee arrangement associated with a PAGA settlement. This is consistent with the observation of many courts that PAGA claims are analogous to "*qui tam*" suits like those under the federal False Claims Act: when reviewing settlements of *qui tam* claims, courts should and do consider any associated attorney fee arrangement. (See *U.S. v. Texas Instruments Corp.* (9th Cir. 1994) 25 F.3d 725, 728 [attorney fee award must be considered by the trial court as part of its review of the "entire settlement arrangement"].)

As articulated above, Plaintiff seeks a fee award of \$21,666.66 in attorneys' fees. Plaintiff's counsel submits a lodestar figure of \$19,725.00 based on 26.3 hours at a billing rate of \$750 per hour resulting on a multiplier of 1.1. This is within the range of multipliers that courts typically approve. (See *Laffitte v. Robert Half Intern. Inc.* (2016) 1 Cal.5th 480, 488, 503–504 (*Laffitte*) [trial court did not abuse its discretion in approving fee award of 1/3 of the common fund, cross-checked against a lodestar resulting in a multiplier of 2.03 to 2.13]; *Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 255 ["[m]ultipliers can range from 2 to 4 or even higher"]; *Vizcaino v. Microsoft Corp.* (9th Cir. 2002) 290 F.3d 1043, 1051, fn. 6 [stating that multipliers ranging from one to four are typical in common fund cases and citing the court's own survey of large settlements finding "a range of 0.6–19.6, with most (20 of 24, or 83%) from 1.0–4.0 and a bare majority (13 of 24, or 54%) in the 1.5–3.0 range"].)

Here, given the work performed by Plaintiff's counsel, and because the requested multiplier sought is within the range of multipliers regularly approved by California courts in similar actions and that it is supported by Plaintiff's counsel's declaration, the Court finds counsel's requested fee award is reasonable and therefore it is approved.

C. Other Costs and Expenses

Plaintiffs' counsel requests litigation costs in the amount of \$8,004.8000. This is supported by the declaration of Plaintiff's counsel and it is below the \$9,000.00 provided for in the Settlement. Thus, this amount appears reasonable and is approved.

Administration costs of \$3,500 are also approved.

V. ADMINISTRATION PROCESS

Pursuant to the terms of the Settlement, within 15 days of Court approval of its terms, Defendant will provide settlement administrator Phoenix Class Action Administration Solutions ("Phoenix") with a list of all PAGA Members with the relevant identifying information (including the last known home address) and the number of pay periods worked. Within 30 days of Court approval, Defendants shall send Phoenix the Settlement funds. Upon

receipt of the funds, Phoenix shall distribute the payments in accordance with the Settlement. Any notice packets returned as undeliverable within 21 days shall be sent to the forwarding address and if a forwarding address is not provided then the funds shall be sent to the State Controller's Unclaimed Property Fund. These administrative procedures are appropriate and are approved.

VI. ORDER AND JUDGMENT

Plaintiff's motion for approval of the parties' PAGA settlement is GRANTED. The covered individuals are: all current and former employees, including Plaintiff, who worked for Defendant R-Bros. Painting, Inc. at any time during the PAGA Period.

Judgment shall be entered through the filing of this order and judgment. (Code Civ. Proc., § 668.5.) Plaintiff and PAGA Members shall take from the PAGA claim in their operative pleading only the relief set forth in the parties' settlement agreement and this order and judgment. The Court retains jurisdiction over the parties to enforce the terms of the PAGA settlement agreement and the final order and judgment.

The Court sets a compliance hearing for **March 25, 2027 at 2:30 P.M.** in Department 22. At least ten court days before the hearing, Plaintiff's counsel and the settlement administrator shall submit a summary accounting of the net settlement fund identifying distributions made as ordered herein; the number and value of any uncashed checks; amounts remitted the *cy pres* recipient; the status of any unresolved issues; and any other matters appropriate to bring to the Court's attention. Counsel may appear at the compliance hearing remotely.

The Court will prepare the order.

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Calendar Line 6

Case Name: *Michael Spatz v. Charles Liang, et al.*

Case No.: 24CV452241 (consolidated with Case Nos. 24CV454416 and 24CV454689)

This is a shareholder derivative action on behalf of Super Micro Computer, Inc. (“Supermicro”) and it arises from pervasive breaches of fiduciary duty by Supermicro’s officers and directors involving accounting manipulation, false and misleading statements to shareholders and a materially deficient corporate governance and internal controls regime.

Before the Court is nominal defendant Super Micro’s, individual defendants’ Robert Blair, Shiu Leung (Fred) Chan, Daniel W. Fairfax, Susan M. Giordano, Charles Liang, Yih-Shyan (Wally) Liaw, Judy Lin, Sara Liu, Tally Liu, Sherman Tuan, and David E. Weigand (collectively, “Individual Defendants”), and plaintiffs’ John Clark, Myron Carter, Gary Reynolds, Bernice Reynolds, and Michael Spatz (collectively, “Plaintiffs”) joint motion to seal.

As discussed below, the Court GRANTS the parties’ motion.

X. MOTION TO SEAL

The parties move to seal portions of Plaintiffs’ amended consolidated shareholder Complaint (“FAC”).

A. Legal Standard

“The court may order that a record be filed under seal only if it expressly finds facts that establish: (1) There exists an overriding interest that overcomes the right of public access to the record; (2) The overriding interest supports sealing the record; (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) The proposed sealing is narrowly tailored; and (5) No less restrictive means exist to achieve the overriding interest.” (Cal. Rules of Court, rule 2.550(d).) Pleadings, in particular, should be open to public inspection “as a general rule,” although they may be filed under seal in appropriate circumstances. (*Mercury Interactive Corp. v. Klein* (2007) 158 Cal.App.4th 60, 104, fn. 35.)

“Courts have found that, under appropriate circumstances, various statutory privileges, trade secrets, and privacy interests, when properly asserted and not waived, may constitute overriding interests.” (*In re Providian Credit Card Cases* (2002) 96 Cal.App.4th 292, 298, fn. 3 (*Providian*).) Confidential matters relating to the business operations of a party may be sealed where public revelation of the information would interfere with the party’s ability to effectively compete in the marketplace. (See *Universal City Studios, Inc. v. Superior Court* (2003) 110 Cal.App.4th 1273, 1285–1286.)

Rule 2.550 does not directly apply to “discovery motions and records filed or lodged in connection with discovery motions or proceedings.” (See Cal. Rules of Court, rule 2.550(a)(3); *H.B. Fuller Co. v. Doe* (2007) 151 Cal.App.4th 879, 892-893 (*Fuller*) [the discovery process would be impeded if a presumptive right of public access to records disclosed under protective orders and filed in connection with routine discovery motions were

imposed].) Nonetheless, even in discovery proceedings, a party moving for leave to file records under seal must identify the specific information claimed to be entitled to confidentiality and the nature of the harm threatened by disclosure. (See *Fuller, supra*, 151 Cal.App.4th at p. 894.)

Where some material within a document warrants sealing, but other material does not, the document should be edited or redacted if possible, to accommodate both the moving party's overriding interest and the strong presumption in favor of public access. (Cal. Rules of Court, rule 2.550(d)(4), (5).) In such a case, the moving party should take a line-by-line approach to the information in the document, rather than framing the issue to the court on an all-or-nothing basis. (*Providian, supra*, 96 Cal.App.4th at p. 309.)

B. Discussion

The parties move to seal portions of the FAC that contain information derived from Supermicro's non-public corporate books and records. (Motion, p. 2:8-9.) On May 6, 2025, Plaintiffs and Supermicro executed a non-disclosure and confidentiality agreement (the "Confidentiality Agreement") which governs Plaintiffs' use and disclosure of the materials Supermicro produced pursuant to Section 220 of the Delaware General Corporation Law. (Motion, p. 3:15-24.)

Supermicro has a legitimate interest in maintaining confidentiality of the redacted portions of the FAC, which reference competitively sensitive business and financial information including: financial and accounting information; strategic planning regarding financial and business operations; and board deliberations, processes, and personnel decisions. (Motion, pp. 4:23-5:5.) Supermicro's interest in confidentiality supports sealing because the disclosure of the information could cause significant harm. (Motion, p. 5:21-28.) There is a substantial risk that Supermicro's business interest will be prejudiced if the information is made public. (Motion, p. 6:6-7.) The proposed redactions are narrowly tailored and there is no restrictive means to protect the overriding interest. (Motion, pp. 6:15-6:6.) Based on the foregoing, the Court finds that the parties' sufficiently establish Supermicro's overriding interest that justifies sealing this information and that the other factors set forth in rule 2.550 are satisfied. (See *Universal, supra*, 110 Cal.App.4th 1273 at p.1286 [confidential information relating to a party's business operations can be sealed].)

Accordingly, the parties' joint motion to seal is GRANTED.

XI. CONCLUSION

The parties' motion to seal is GRANTED.

The Court will prepare the final order.

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Calendar Line 7

Case Name: *Jackson et al. v. LinkedIn Corporation*

Case No.: 25CV457271

On behalf of themselves and all others similarly situated, plaintiffs Jacqueline Jackson, Michael D'Andre Davis, and Teppera Lowery (collectively, "Plaintiffs") bring this action against defendant LinkedIn Corporation ("Defendant" or "LinkedIn").

Before the Court is Defendant's opposed demurrer. For the reasons discussed below, the Court OVERRULES the demurrer.

DUE TO ORDERS TO SEAL, THE FULL TENTATIVE RULING WILL BE PROVIDED ONLY TO THE PARTIES.

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Calendar Line 8 Calendar Line 8

Case Name: *Cruz Juarez, et al. v. Century Commercial Service dba Century Lighting & Electric, et al.*

Case No.: 25CV461988

This is a putative class and Private Attorneys General Act (“PAGA”) action. Plaintiffs Cruz M. Juarez (“Juarez”) and Joseph Gonzales (“Gonzales”)(collectively, “Plaintiffs”) allege defendant Century Commercial Services dba Century Lighting & Electric committed various wage and hour violations.

Before the Court is Plaintiffs’ motion for preliminary approval of class action and PAGA settlement, which is unopposed. As discussed below, the Court GRANTS the motion.

VII. BACKGROUND

According to the allegations of the operative second amended complaint (“SAC”), Plaintiff Juarez was employed as a non-exempt, hourly employee from December 2021 through September 2024. (SAC, ¶ 3.) Plaintiff Gonzales was employed as a non-exempt, hourly employee from October 2022 to May 2025. (SAC, ¶ 4.) Defendant failed to, among other things,: provide meal periods or compensation in lieu thereof; provide rest periods or compensation in lieu thereof; timely pay wages; pay minimum or overtime wages; maintain accurate records; and provide itemized wage statements.

Based on the foregoing, Plaintiff Juarez initiated this action on March 25, 2025, with the filing of the Complaint and on July 9, 2025, Plaintiffs filed the first amended complaint, which asserted the following causes of action: (1) unfair competition in violation of Business & Professions Code § 17200, *et seq.*; (2) failure to pay minimum wages in violation of Labor Code §§ 1194, 1197, 1197.1; (3) failure to pay overtime wages in violation of Labor Code §§510, *et seq.*; (4) failure to provide required meal periods in violation of Labor Code §§ 226.7 & 512, and the applicable IWC wage order; (5) failure to provide required rest periods in violation of Labor Code §§ 226.7 & 512 and the applicable wage order; (6) failure to provide accurate itemized statements in violation of Labor Code §226 ; (7) failure to provide wage when due in violation of Labor Code §§ 201-203; (8) failure to reimburse employees for required expenses in violation of Labor Code § 2802; and (9) failure to permit inspection of employee records in violation of Labor Code § 1198.5. On June 25, 2026, Plaintiff filed the operative SAC, which asserts the same claims and adds a tenth cause of action for PAGA penalties.

Plaintiffs now move for an order preliminarily approving the Stipulation of Settlement of Class and PAGA Claims and Release of Claims (the “Settlement”); conditionally certifying the Settlement Class; approving distribution of the proposed Class notice; appointing Plaintiffs as the Class Representatives; appointing JCL Law Firm, APC; and Zakay Law Group APLC as Class Counsel; and setting the hearing date for final approval.

VIII. LEGAL STANDARDS FOR SETTLEMENT APPROVAL

A. Class Action

Generally, “questions whether a [class action] settlement was fair and reasonable, whether notice to the class was adequate, whether certification of the class was proper, and whether the attorney fee award was proper are matters addressed to the trial court’s broad discretion.” (*Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 234–235 (*Wershba*), disapproved of on other grounds by *Hernandez v. Restoration Hardware, Inc.* (2018) 4 Cal.5th 260.)

In determining whether a class settlement is fair, adequate and reasonable, the trial court should consider relevant factors, such as the strength of plaintiffs’ case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the stage of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction of the class members to the proposed settlement.

(*Wershba, supra*, 91 Cal.App.4th at pp. 244–245, internal citations and quotations omitted.)

In general, the most important factor is the strength of the plaintiffs’ case on the merits, balanced against the amount offered in settlement. (See *Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 130 (*Kullar*).) But the trial court is free to engage in a balancing and weighing of relevant factors, depending on the circumstances of each case. (*Wershba, supra*, 91 Cal.App.4th at p. 245.) The trial court must examine the “proposed settlement agreement to the extent necessary to reach a reasoned judgment that the agreement is not the product of fraud or overreaching by, or collusion between, the negotiating parties, and that the settlement, taken as a whole, is fair, reasonable and adequate to all concerned.” (*Ibid.*, citation and internal quotation marks omitted.) The trial court also must independently confirm that “the consideration being received for the release of the class members’ claims is reasonable in light of the strengths and weaknesses of the claims and the risks of the particular litigation.” (*Kullar, supra*, 168 Cal.App.4th at p. 129.) Of course, before performing its analysis the trial court must be “provided with basic information about the nature and magnitude of the claims in question and the basis for concluding that the consideration being paid for the release of those claims represents a reasonable compromise.” (*Id.* at pp. 130, 133.)

B. PAGA

Labor Code section 2699, subdivision (1)(2) provides that “[t]he superior court shall review and approve any settlement of any civil action filed pursuant to” PAGA. The court’s review “ensur[es] that any negotiated resolution is fair to those affected.” (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 549.) Seventy-five percent of any penalties recovered under PAGA go to the Labor and Workforce Development Agency (LWDA), leaving the remaining twenty-five percent for the aggrieved employees. (*Iskanian v. CLS Transportation Los Angeles, LLC* (2014) 59 Cal.4th 348, 380, overruled on other grounds by *Viking River Cruises, Inc. v. Moriana* (2022) 596 U.S. 639, 2022 U.S. LEXIS 2940.)

Similar to its review of class action settlements, the Court must “determine independently whether a PAGA settlement is fair and reasonable,” to protect “the interests of the public and the LWDA in the enforcement of state labor laws.” (*Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 76–77.) It must make this assessment “in view of PAGA’s purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws.” (*Id.* at p. 77; see also *Haralson v. U.S. Aviation Servs. Corp.* (N.D. Cal. 2019) 383 F. Supp. 3d 959, 971 [“when a PAGA claim is settled, the relief provided for under the PAGA [should] be genuine and meaningful, consistent with the underlying purpose of the statute to benefit the public”], quoting LWDA guidance discussed in *O’Connor v. Uber Technologies, Inc.* (N.D. Cal. 2016) 201 F.Supp.3d 1110 (*O’Connor*).)

The settlement must be reasonable in light of the potential verdict value. (See *O’Connor, supra*, 201 F.Supp.3d at p. 1135 [rejecting settlement of less than one percent of the potential verdict].) But a permissible settlement may be substantially discounted, given that courts often exercise their discretion to award PAGA penalties below the statutory maximum even where a claim succeeds at trial. (See *Viceral v. Mistras Group, Inc.* (N.D. Cal., Oct. 11, 2016, No. 15-CV-02198-EMC) 2016 WL 5907869, at *8–9.)

IX. SETTLEMENT PROCESS

On March 25, 2025, Plaintiff served Defendant and the Labor and Workforce Development Agency (“LWDA”) with his PAGA notice and he initiated this action with the filing of his Complaint. On May 30, 2025, he filed a separate representative PAGA action. On July 9, 2025, he filed the FAC which added Plaintiff Gonzales to the instant action.

On February 11, 2026, the parties participated in a full-day mediation presided over by Hon. Brian C. Walsh (Ret.). The parties reached a settlement after accepting a mediator’s proposal and they signed a Memorandum of Understanding on April 10, 2026. Subsequently, the parties drafted and negotiated a long-form settlement agreement. To facilitate the Settlement, on June 24, 2026, Plaintiffs filed the operative SAC.

X. SETTLEMENT PROVISIONS

The non-reversionary gross settlement amount is \$1,136,097.16. Attorneys’ fees of up to one-third (\$378,699.05), litigation costs of up to \$30,000, and administration costs of up to \$10,000. \$75,000 will be allocated to PAGA penalties, 65% of which (\$48,750) will be paid to the LWDA, and the remaining 35% (\$26,250) will be paid to “Aggrieved Employees” who are defined as “all current and former non-exempt employees of Defendant within the State of California who worked for Defendant at any time during the PAGA Period [March 25, 2024 to April 12, 2026].” Plaintiffs will seek service awards in the amount of \$10,00 each—totaling \$20,000.

The net settlement amount—estimated to be \$622,398.11—will be allocated to Class Members who are defined as “[a]ll current and former nonexempt employees of Defendant within the State of California at any time during the Class Period [March 25, 2021 through April 12, 2026].” For tax purposes, 20% of each Class Member’s settlement payment will be allocated to wages and 80% will be allocated to interests and penalties. Defendant will pay the employer side payroll taxes separate and apart from the Settlement. Funds associated with

checks uncashed after 180 days will be transmitted the State Controller's Unclaimed Property Fund in the name of the Class Member who did not claim the funds.

In exchange for settlement, Class Members who do not opt out will release: [A]ll the claims asserted or that could have reasonably been alleged arising out of the facts, circumstances, and primary rights at issue in the operative complaints in the Action and any amendments thereto which occurred during the Class Period; and, expressly excluding claims for vested benefits, wrongful termination, unemployment insurance, disability, social security, workers' compensation, and class claims outside of the Class Period.

Aggrieved Employees, who consistent with the statute will not be able to opt out of the PAGA portion of the settlement, will release:

[A]ll claims for PAGA penalties asserted or that could reasonably have been alleged arising out of facts alleged in the operative complaints and any amendments thereto and Plaintiffs' respective letters to the LWDA which occurred during the PAGA Period.

The foregoing releases are appropriately tailored to the allegations at issue. (See *Amaro v. Anaheim Arena Management, LLC* (2021) 69 Cal.App.5th 521, 537.)

XI. FAIRNESS OF SETTLEMENT

Based on available data provided by Defendants, Class Counsel engaged Berger Consulting Group ("BCG") to evaluate the Class Members' payroll and time data. Class Counsel calculated Defendant's maximum exposure for the class claims as follows: \$1,364,439.30 (failure to pay for all hours worked); \$1,534,588.89 (meal period claim); \$1,534,588.89 (rest period claim); \$74,944.35 (failure to reimburse for necessary business expenses); \$97,423 (failure to calculate the regular rate of pay); \$795,960.90 (waiting time penalties); \$267,190 (wage statement penalties)—totaling \$5,669,135.33. The maximum exposure for the PAGA penalties is approximately \$973,145.

Class Counsel applied a 30% discount to the following claims failure to pay for all hours worked claim; meal period claim; and the rest period claim. Class Counsel also considered the risks associated with continued litigation.

When considering the maximum exposure of the class claims and the PAGA liability, the gross settlement amount is approximately 17.1% of the maximum exposure, which is well below the range of recoveries typically approved by California courts. (See *Cavazos v. Salas Concrete, Inc.* (E.D. Cal., Feb 18, 2022, No. 1:19-cv-00062-DAD-EPG) 2022 U.S. Dist. LEXIS 30201, at *41-42 [citing cases approving settlements in the range of 5 to 35 percent of the maximum potential exposure].)

Considering the portion of the case's value attributable to uncertain penalties, claims that could be difficult to certify for class treatment, and the multiple, dependent contingencies that Plaintiffs would have had to overcome to prevail on the claims, the settlement achieves a good result for the Class. For purposes of preliminary approval, the Court finds that the settlement is fair and reasonable to the Class, and the PAGA allocation is genuine, meaningful, and reasonable in light of the statute's purposes.

XII. PROPOSED SETTLEMENT CLASS

Plaintiffs request certification of the following class for settlement purposes:

[A]ll current and former nonexempt employees of Defendant within the State of California at any time during the Class Period.

A. Legal Standard for Certifying a Class for Settlement Purposes

Rule 3.769(d) of the California Rules of Court states that “[t]he court may make an order approving or denying certification of a provisional settlement class after [a] preliminary settlement hearing.” California Code of Civil Procedure Section 382 authorizes certification of a class “when the question is one of a common or general interest, of many persons, or when the parties are numerous, and it is impracticable to bring them all before the court”

Section 382 requires the plaintiff to demonstrate by a preponderance of the evidence: (1) an ascertainable class and (2) a well-defined community of interest among the class members. (*Sav-On Drug Stores, Inc. v. Superior Court* (2004) 34 Cal.4th 319, 326, 332 (*Sav-On Drug Stores*)). “Other relevant considerations include the probability that each class member will come forward ultimately to prove his or her separate claim to a portion of the total recovery and whether the class approach would actually serve to deter and redress alleged wrongdoing.” (*Linder v. Thrifty Oil Co.* (2000) 23 Cal.4th 429, 435.) The plaintiff has the burden of establishing that class treatment will yield “substantial benefits” to both “the litigants and to the court.” (*Blue Chip Stamps v. Superior Court* (1976) 18 Cal.3d 381, 385.)

In the settlement context, “the court’s evaluation of the certification issues is somewhat different from its consideration of certification issues when the class action has not yet settled.” (*Luckey v. Superior Court* (2014) 228 Cal.App.4th 81, 93.) As no trial is anticipated in the settlement-only context, the case management issues inherent in the ascertainable class determination need not be confronted, and the court’s review is more lenient in this respect. (*Id.* at pp. 93–94.) But considerations designed to protect absentees by blocking unwarranted or overbroad class definitions require heightened scrutiny in the settlement-only class context, since the court will lack the usual opportunity to adjust the class as proceedings unfold. (*Id.* at p. 94.)

B. Ascertainable Class

A class is ascertainable “when it is defined in terms of objective characteristics and common transactional facts that make the ultimate identification of class members possible when that identification becomes necessary.” (*Noel v. Thrifty Payless, Inc.* (2019) 7 Cal.5th 955, 980 (*Noel*)). A class definition satisfying these requirements

puts members of the class on notice that their rights may be adjudicated in the proceeding, so they must decide whether to intervene, opt out, or do nothing and live with the consequences. This kind of class definition also advances due process by supplying a concrete basis for determining who will and will not be bound by (or benefit from) any judgment.

(*Noel, supra*, 7 Cal.5th at p. 980, citation omitted.)

“As a rule, a representative plaintiff in a class action need not introduce evidence establishing how notice of the action will be communicated to individual class members in order to show an ascertainable class.” (*Noel, supra*, 7 Cal.5th at p. 984.) Still, it has long been held that “[c]lass members are ‘ascertainable’ where they may be readily identified ... by reference to official records.” (*Rose v. City of Hayward* (1981) 126 Cal. App. 3d 926, 932, disapproved of on another ground by *Noel, supra*, 7 Cal.5th 955; see also *Cohen v. DIRECTV, Inc.* (2009) 178 Cal.App.4th 966, 975-976 [“The defined class of all HD Package subscribers is precise, with objective characteristics and transactional parameters, and can be determined by DIRECTV’s own account records. No more is needed.”].)

Here, the estimated 575 Class members are readily identifiable based on Defendant’s records, and the settlement Class is appropriately defined based on objective characteristics. The Court finds that the settlement Class is numerous, ascertainable, and appropriately defined.

C. Community of Interest

The “community-of-interest” requirement encompasses three factors: (1) predominant questions of law or fact, (2) class representatives with claims or defenses typical of the class, and (3) class representatives who can adequately represent the class. (*Sav-On Drug Stores, supra*, 34 Cal.4th at pp. 326, 332.)

For the first community of interest factor, “[i]n order to determine whether common questions of fact predominate the trial court must examine the issues framed by the pleadings and the law applicable to the causes of action alleged.” (*Hicks v. Kaufman & Broad Home Corp.* (2001) 89 Cal.App.4th 908, 916 (*Hicks*).) The court must also examine evidence of any conflict of interest among the proposed class members. (See *J.P. Morgan & Co., Inc. v. Superior Court* (2003) 113 Cal.App.4th 195, 215.) The ultimate question is whether the issues which may be jointly tried, when compared with those requiring separate adjudication, are so numerous or substantial that the maintenance of a class action would be good for the judicial process and to the litigants. (*Lockheed Martin Corp. v. Superior Court* (2003) 29 Cal.4th 1096, 1104–1105 (*Lockheed Martin*).) “As a general rule if the defendant’s liability can be determined by facts common to all members of the class, a class will be certified even if the members must individually prove their damages.” (*Hicks, supra*, 89 Cal.App.4th at p. 916.)

Here, common legal and factual issues predominate. Plaintiffs’ claims all arise from Defendants’ wage and hour practices.

As for the second factor,

The typicality requirement is meant to ensure that the class representative is able to adequately represent the class and focus on common issues. It is only when a defense unique to the class representative will be a major focus of the litigation, or when the class representative’s interests are antagonistic to or in conflict with the objectives of those she purports to represent that denial of class certification is appropriate. But even then, the court should determine if it would be feasible to divide the class into subclasses to eliminate the conflict and allow the class action to be maintained.

(*Medraza v. Honda of North Hollywood* (2008) 166 Cal. App. 4th 89, 99, internal citations, brackets, and quotation marks omitted.)

Like the other members of the proposed Class, Plaintiffs were employed by Defendants and allege that they experienced the conduct at issue. The anticipated defenses are not unique to Plaintiffs, and there is no indication that Plaintiffs' interests are otherwise in conflict with those of the proposed Class.

Finally, adequacy of representation "depends on whether the plaintiff's attorney is qualified to conduct the proposed litigation and the plaintiff's interests are not antagonistic to the interests of the class." (*McGhee v. Bank of America* (1976) 60 Cal.App.3d 442, 450.) The class representative does not necessarily have to incur all of the damages suffered by each different class member in order to provide adequate representation to the class. (*Wershba, supra*, 91 Cal.App.4th at p. 238.) "Differences in individual class members' proof of damages [are] not fatal to class certification. Only a conflict that goes to the very subject matter of the litigation will defeat a party's claim of representative status." (*Ibid.*, internal citations and quotation marks omitted.)

Plaintiffs have the same interest in maintaining this action as any Class Member would have. Further, they have hired experienced counsel. Plaintiffs have sufficiently demonstrated adequacy of representation.

D. Substantial Benefits of Class Certification

"[A] class action should not be certified unless substantial benefits accrue both to litigants and the courts. . . ." (*Basurco v. 21st Century Ins.* (2003) 108 Cal.App.4th 110, 120, internal quotation marks omitted.) The question is whether a class action would be superior to individual lawsuits. (*Ibid.*) "Thus, even if questions of law or fact predominate, the lack of superiority provides an alternative ground to deny class certification." (*Ibid.*) Generally, "a class action is proper where it provides small claimants with a method of obtaining redress and when numerous parties suffer injury of insufficient size to warrant individual action." (*Id.* at pp. 120–121, internal quotation marks omitted.)

Here, there are an estimated 575 Class Members. It would be inefficient for the Court to hear and decide the same issues separately and repeatedly for each class member. Further, it would be cost prohibitive for each Class member to file suit individually, as each member would have the potential for little to no monetary recovery. It is clear that a class action provides substantial benefits to both the litigants and the Court in this case.

XIII. NOTICE

The content of a class notice is subject to court approval. (Cal. Rules of Court, rule 3.769(f).) "The notice must contain an explanation of the proposed settlement and procedures for class members to follow in filing written objections to it and in arranging to appear at the settlement hearing and state any objections to the proposed settlement." (*Ibid.*) In determining the manner of the notice, the court must consider: "(1) The interests of the class; (2) The type of relief requested; (3) The stake of the individual class members; (4) The cost of notifying class members; (5) The resources of the parties; (6) The possible prejudice to class members

who do not receive notice; and (7) The res judicata effect on class members.” (Cal. Rules of Court, rule 3.766(e).)

Here, the notice, which will be provided in English, informs the Class Members of the nature of the lawsuit and their rights under the terms of the Settlement and applicable law. It includes: a detailed explanation of the case, including the basic contentions or denials of the Parties and the basic terms of the Settlement; a statement that the court will exclude the member from the Class if they request so by a specified date; a procedure for the member to follow in requesting exclusions from the Class; an explanation that members of the Class can participate in the Settlement by doing nothing; a statement that the judgment, whether favorable or not, will bind all members who do not request exclusion; and a statement that any member who does not request exclusion may, if the member so desires, enter an appearance through counsel. Class Members are given 45 days to exclude themselves or object.

The form of notice is generally adequate but must be modified to instruct Class Members that they may opt out of or object to the settlement simply by providing their name, without needing to provide personal information.

Regarding appearances at the final fairness hearing, the notice shall be modified to instruct class members as follows:

Although class members may appear in person, the judge overseeing this case encourages remote appearances. Class members who wish to appear remotely should contact class counsel at least three days before the hearing if possible. Remote appearances must be made through UDC, unless otherwise arranged with the Court. Please go to <https://santaclara.courts.ca.gov/online-services/remote-hearings> to find the appropriate link. Also, please note that that you must register in advance to appear remotely.

Turning to the notice procedure, as articulated above, the parties have selected Xpand Legal Consulting, LLC (“Xpand”). No later than 21 days after preliminary approval is entered, Norcal will deliver the Class Data to Xpand. No later than 30 days after preliminary approval, Xpand will mail the Class notices. Any returned notices will be promptly re-mailed to any forwarding address provided within 7 days. If no forwarding address is found, Xpand shall conduct an investigation for one and if one is found, Xpand shall re-mail the notice. The response deadline will be extended by 14 days for Class Members’ whose notice is re-mailed. These notice procedures are appropriate and are approved.

XIV. SERVICE AWARDS, FEES, AND COSTS

Plaintiffs request a service award of \$10,000 each.

The rationale for making enhancement or incentive awards to named plaintiffs is that they should be compensated for the expense or risk they have incurred in conferring a benefit on other members of the class. An incentive award is appropriate if it is necessary to induce an individual to participate in the suit. Criteria courts may consider in determining whether to make an incentive award include: 1) the risk to the class representative in commencing suit, both financial and otherwise; 2) the notoriety and personal difficulties encountered by the class representative; 3) the amount of time and effort spent by the class

representative; 4) the duration of the litigation and; 5) the personal benefit (or lack thereof) enjoyed by the class representative as a result of the litigation.

These “incentive awards” to class representatives must not be disproportionate to the amount of time and energy expended in pursuit of the lawsuit.

(*Cellphone Termination Fee Cases* (2010) 186 Cal.App.4th 1380, 1394-1395, internal punctuation and citations omitted; see also *Covillo v. Specialty’s Café* (N.D. Cal. 2014) 2014 U.S.Dist.LEXIS 29837, at *29 [incentive awards are particularly appropriate where a plaintiff undertakes a significant “reputational risk” in bringing an action against an employer].)

Plaintiffs submitted their respective declarations in support of their request. However, neither Plaintiff included the amount of time spent on this action. Thus, prior to final approval, Plaintiffs are ordered to submit supplemental declarations stating the total hours they each spent on this action, the tasks performed, and any other factors they would like the Court to consider.

The request for administrative costs in the amount of \$10,000 is supported by the declaration Jonathan Paul, CEO of Xpand. Thus, it is approved.

The court also has an independent right and responsibility to review the requested attorney fees and only award so much as it determines reasonable. (See *Garabedian v. Los Angeles Cellular Telephone Co.* (2004) 118 Cal.App.4th 123, 127-128.) Class Counsel will seek attorneys’ fees of up to one-third of the gross settlement amount (currently estimated to be 378,699.05), and litigation costs for up to \$30,000. Prior to any final approval hearing, Class Counsel shall submit lodestar information (including hourly rate and hours worked) as well as evidence of actual litigation costs incurred.

XV. CONCLUSION

Plaintiffs’ motion for preliminary approval is GRANTED.

The final approval hearing shall take place on **January 28, 2027** at 1:30 in Department 22. The following Class is preliminarily certified for settlement purposes:

All current and former nonexempt employees of Defendant within the State of California at any time during the Class Period.

The Court will prepare the order.

- 00000 -

- 00000 -

Calendar Line 9

Case Name: *Shannon McElrath v. Commure, Inc.*

Case No.: 25CV472683

This is a putative class and representative action under the Private Attorneys General Act (“PAGA”). Plaintiff Shannon McElrath (“Plaintiff”) alleges defendant Commure, Inc. (“Defendant”) committed various wage and hour violations and discrimination.

Before the Court is Defendant’s motion to compel arbitration and stay or dismiss proceedings.

As discussed below, the Court DENIES the motion.

I. BACKGROUND

According to the operative first amended complaint (“FAC”), Plaintiff was employed by Defendant from approximately March 2024 to July 2025 as a Technical Support Agent. (FAC, ¶¶ 1, 18.) During the relevant period, Plaintiff alleges: she and similarly situated employees were not permitted to take legally compliant meal and rest periods, not paid meal and rest period premium pay, or reimbursed for necessary business expenses, including mobile phone use. (*Ibid.*) As a consequence of the unpaid meal and rest period premium pay, Plaintiff was not paid all wages owed upon separation from employment and did not receive accurate itemized wage statements during employment. (*Ibid.*) Plaintiff also brings this action on behalf of herself for wrongful termination under California’s Fair Employment and Housing Act (“FEHA”). (*Ibid.*)

On August 12, 2025, Plaintiff initiated the instant action. On December 16, 2025, Plaintiff filed the operative FAC asserting ten causes of action. On May 15, 2026, Defendant filed a motion to compel arbitration and stay proceedings. Plaintiff opposes the motion.

II. LEGAL STANDARD

In ruling on a motion to compel arbitration, the Court must inquire as to (1) whether there is a valid agreement to arbitrate, and (2) if so, whether the scope of the agreement covers the claims alleged. (See *Howsan v. Dean Witter Reynolds* (2002) 537 U.S. 79, 84.) “Under both federal and state law, the threshold question presented by a petition to compel arbitration is whether there is an agreement to arbitrate. [Citations.] The threshold question requires a response because if such an agreement exists, then the court is statutorily required to order the matter to arbitration.” (*Fleming v. Oliphant Financial, LLC* (2023) 88 Cal.App.5th 13, 19 [internal quotations omitted].)

“The FAA [Federal Arbitration Act], which includes both procedural and substantive provisions, governs [arbitration] agreements involving interstate commerce.” (*Avila v. Southern California Specialty Care, Inc.* (2018) 20 Cal.App.5th 835, 840.) However, “[t]he procedural aspects of the FAA do not apply in state court absent an express provision in the arbitration agreement.” (*Ibid.*) Here, the Agreement expressly provides that it “shall be interpreted and enforced in accordance with the [FAA],” and thus federal procedural and substantive law apply. (See *Rodriguez v. American Technologies, Inc.* (2006) 136 Cal.App.4th 1110, 1122 [“[t]he phrase ‘pursuant to the FAA’ is broad and unconditional,” and unambiguously adopts both the procedural and substantive aspects of the FAA].)

Under the FAA, the Court must grant a motion to compel arbitration if any suit is brought upon “any issue referable to arbitration under an agreement for such arbitration” (9 U.S.C. § 3), subject to “such grounds as exist at law or in equity for the revocation of any contract...” (9 U.S.C. § 2). The moving party must prove by a preponderance of evidence the

existence of the arbitration agreement and that the dispute is covered by the agreement. (See *Cruise v. Kroger Co.* (2015) 233 Cal.App.4th 390, 396 [under both federal and state law, “the threshold question presented by a petition to compel arbitration is whether there is an agreement to arbitrate”]; *Rosenthal v. Great Western Fin’l Securities Corp.* (1996) 14 Cal.4th 394, 413 (*Rosenthal*) [moving party’s burden is a preponderance of evidence].) The burden then shifts to the resisting party to prove a ground for denial. (*Rosenthal, supra*, 14 Cal.4th at p. 413.)

“In determining the rights of parties to enforce an arbitration agreement within the FAA’s scope, courts apply state contract law while giving due regard to the federal policy favoring arbitration.” (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236.)

But the FAA’s policy favoring arbitration ... is merely an acknowledgment of the FAA’s commitment to overrule the judiciary’s longstanding refusal to enforce agreements to arbitrate and to place such agreements upon the same footing as other contracts. Or in another formulation: The policy is to make arbitration agreements as enforceable as other contracts, but not more so. Accordingly, a court must hold a party to its arbitration contract just as the court would to any other kind.

(*Morgan v. Sundance, Inc.* (2022) 596 U.S. 411 (*Morgan*) [internal citations and quotations omitted].)

III. DEFENDANT’S MOTION TO COMPEL ARBITRATION AND REQUEST TO STAY ACTION

Defendant moves for an order compelling arbitration of Plaintiff’s individual claims, dismissing the class claims, and staying any non-individual PAGA claim pending completion of the individual arbitration.

a. Existence of Agreement to Arbitrate

To establish the existence of an arbitration agreement, Defendant submits the declaration of Celeste Stephens (“Stephens”), Defendant’s Director, People. (Stephens Decl., ¶ 1.) Stephens states that Cynthia Jiang (“Jiang”), Senior Recruiter, was involved in transmitting Plaintiff’s offer letter via Docusign. (*Id.* at ¶ 7.) Defendant’s records reflect that a final offer letter containing an arbitration provision (“Arbitration Provision”) was sent to Plaintiff through Docusign and she electronically signed the offer letter on February 28, 2024 and Defendant’s general counsel, Daniel Brian, countersigned on behalf of Defendant. (*Id.* at ¶ 9.) The Arbitration Provision is found at Paragraph 10 of the offer letter. (*Id.* at ¶ 10.) The Arbitration Provision is attached to Stephens’s declaration as Exhibit B. Stephens states that the Docusign was sent to Plaintiff’s email address and accepted by her. (*Id.* at ¶ 13.)

Exhibit B bears Plaintiff’s electronic signature dated February 28, 2024. (See Stephens Decl., Ex. B.) Defendant contends that by executing the offer letter containing the Arbitration Provision, Plaintiff agreed to arbitrate all claims related to her employment on an individual basis and that neither party may proceed by class action. (Motion, p. 1:4-12.) As relevant here, the following provision constitutes the Arbitration Provision:

To ensure the rapid and economical resolution of disputes that may arise in connection with your employment with the Company, you and the Company agree that any and all disputes, claims, or causes of action, in law or equity, including but not limited to statutory claims, arising from or relating to the enforcement, breach, performance, or interpretation of this Agreement, your employment with the Company, or the termination of your employment, shall

be resolved, to the fullest extent permitted by law, by final, binding arbitration conducted by AAA or its successor, under AAA's then applicable rules and procedures for employment disputes (available upon request and also currently available at <http://www.adr.org/sites/default/files/EmploymentRules-Web.pdf>. **You acknowledge that by agreeing to this arbitration procedure, both you and the Company waive the right to resolve any such dispute through a trial by jury or judge or administrative proceeding.** You will have the right to be represented by legal counsel at any arbitration proceeding. The arbitrator shall: (a) have the authority to compel adequate discovery for the resolution of the dispute and to award such relief as would otherwise be permitted by law; and (b) issue a written statement signed by the arbitrator regarding the disposition of each claim and the relief, if any, awarded as to each claim, the reasons for the award, and the arbitrator's essential findings and conclusions on which the award is based. The arbitrator shall be authorized to award all relief that you or the Company would be entitled to seek in a court of law. The Company shall pay all AAA arbitration fees in excess of the administrative fees that you would be required to pay if the dispute were decided in a court of law. Nothing in this letter agreement is intended to prevent either you or the Company from obtaining injunctive relief in court to prevent irreparable harm pending the conclusion of any such arbitration.

You and the Company further agree that any arbitration shall be conducted in an individual capacity only, and neither party shall file suit as a class action or other representative action. If any court or arbitrator determines that the class-action waiver set forth in this section is void or unenforceable for any reason, or that an arbitration can proceed on a class basis, then the arbitration provision set forth above shall be deemed null and void in its entirety and neither you nor the Company shall be deemed to have agreed to arbitrate disputes.

(Stephens Decl., Ex. B, ¶ 10 [Arbitration Provision][emphasis original].)

By producing a copy of the Arbitration Provision purportedly bearing Plaintiff's signature, Defendant has established the existence of an agreement to arbitrate between itself and Plaintiff. In opposition, Plaintiff does not appear to dispute the existence of the Arbitration Provision, instead arguing that the entire Arbitration Provision is null and void because the representative-action waiver is unenforceable as applied to Plaintiff's PAGA claim. (Opposition, p. 2:18-25.)

Accordingly, Defendant has met its initial burden by submitting prima facie evidence of a written agreement to arbitrate the claims asserted in the action. (*Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1060 [a defendant may meet their initial burden on a motion to compel arbitration "by attaching a copy of the arbitration agreement purportedly bearing [the opposing party's] electronic signature"].)

b. Validity and Scope of the Agreement to Arbitrate

The crux of Plaintiff's argument in opposition is that the Arbitration Provision contains a waiver that is unenforceable and therefore, the entire provision is null and void per the language of the provision itself. (Opposition, p. 4:8-16.)

i. Unenforceable Waiver

As noted above, the Arbitration Provision contains the following waiver: "You and the Company further agree that any arbitration shall be conducted in an individual capacity only,

and neither party shall file suit as a class action or other representative action. If any court or arbitrator determines that the class-action waiver set forth in this section is void or unenforceable for any reason, or that an arbitration can proceed on a class basis, then the arbitration provision set forth above shall be deemed null and void in its entirety and neither you nor the Company shall be deemed to have agreed to arbitrate disputes.” (Stephens Decl., Ex. B [emphasis added].)

Plaintiff contends that the language of the provision does not distinguish between individual and non-individual PAGA claims and instead states that employees may not file any other representative actions, a “wholesale waiver [that] California law forbids.” (Opposition, p. 5:24-26.) Plaintiff directs the Court to *DeMarinis v. Heritage Bank of Commerce* (2023) 98 Cal.App.5th 776 (*DeMarinis*) to support her argument that where an agreement prohibits class, collective, or representative proceedings, and separately provides that if waiver is unenforceable, the entire arbitration agreement became null and void, the court will find the waiver unenforceable. (Opposition, p. 4:17-22.)

In *DeMarinis*, the Court explained that [E]mployers are free to draft a severability clause like the one that *Viking River* interpreted in conjunction with the PAGA waiver to permit arbitration of just the individual PAGA claim. (*Viking River*, *supra*, 596 U.S. at p. 649 [142 S.Ct. at p. 1917].) But here, [defendant] did not do so; instead, it used an arbitration agreement containing a nonseverability clause and a poison pill which together specified that all conditions in the waiver provision are material and may not be modified or severed, either ‘in whole or in part,’ and that if the waiver provision is found unenforceable, then ‘the entirety’ of the arbitration agreement is ‘null and void.’ As the trial court aptly observed, these provisions preclude ‘giving effect to the *Viking River* distinction between ‘individual’ and ‘non-individual claims’ because they prohibit severance of the unenforceable nonindividual PAGA claims waiver. And because the waiver provision’s terms cannot be severed in any way, application of *Iskanian*’s³ principal rule renders the entire waiver provision unenforceable, which in turn renders void the entire arbitration agreement.

(*DeMarinis*, *supra*, 98 Cal.App.5th at p. 787; see also *Westmoreland v. Kindercare Education LLC* (2023) 90 Cal.App.5th 967, 982 (*Westmoreland*).)

Plaintiff emphasizes that the Arbitration Provision was presented to Plaintiff in February 2024, after *Viking River* and *Adolph v. Uber Technologies, Inc.* (2023) 14 Cal.5th 1104 were decided and the courts had “already drawn the individual/non-individual PAGA distinction.” (Opposition, p. 5:4-9.) In other words, Defendant could have drafted the provision to allow for severability but chose complete nullification instead. (*Id.* at p. 5:7-9.)

Westmoreland followed similar logic, explaining that “[h]ad [defendant] simply included a waiver of representative claims in its arbitration agreement, and not included the poison pill at the end of the agreement, the result here could have been substantially similar to *Viking River* . . . The arbitration agreement[] in [this] case[] did not have a poison pill provision like the one in [defendant’s] agreement here . . .” (*Westmoreland*, *supra*, 90 Cal.App.5th at p. 982.)

In reply, Defendant argues that if the class action waiver is deemed void then only the class action waiver provision will be deemed null and void. (See Reply, p. 3:9-15.) In other words, Defendant asserts a severability argument. Defendant attempts to distinguish both *Westmoreland* and *DeMarinis*, arguing that “[n]either decision holds that every reference to a

³ *Iskanian v. CLS Transportation Los Angeles, LLC* (2014) 59 Cal.4th 348 [overruled in part, on other grounds, by *Viking River Cruises, Inc. v. Moriana* (2022) 596 U.S. 639].

representative action automatically renders a separately stated, class-specific nullification condition operative” and that the agreements in these cases had specific sections within the agreements addressing waiver, unlike the Arbitration Provision. (Reply, pp. 4:22-27, 5:19-26.) Neither argument is persuasive.

The language of the Arbitration Provision is clear and unambiguous: “If any court or arbitrator determines that the class-action waiver set forth in this section is void or unenforceable for any reason, or that an arbitration can proceed on a class basis, then the arbitration provision set forth above shall be deemed null and void in its entirety and neither you nor the Company shall be deemed to have agreed to arbitrate disputes.” (Stephens Decl., Ex. B, ¶ 10 [emphasis added].) Here, like *DeMarinis* and *Westmoreland*, the class-action waiver is unenforceable and therefore the “arbitration provision set forth above” is null and void. (See *Westmoreland*, *supra*, 90 Cal.App.5th at p. 979 [“Here, the ‘Savings Clause & Conformity Clause’ states that the arbitration agreement is ‘invalid’ if the ‘Waiver of Class and Collective Claims’ is ‘found to be unenforceable.’ This is an unambiguous expression of the parties’ intent to avoid parallel litigation before an arbitrator and before a court.”].)

As Plaintiff states in opposition, Paragraph 10 of the Arbitration Provision necessarily prohibits the parties from filing suit as a “class action or other representative action” entirely, and PAGA actions are representative actions. (See Opposition, p. 5:12-17, citing *Adolph*, *supra*, 14 Cal.5th at pp. 1116-1117 and *Viking River*, *supra*, 596 U.S. at p. 646 [stating PAGA gives “employees a right to assert the State’s claims for civil penalties on a representative basis . . .”].) Given that the waiver provision in Paragraph 10 prohibits severance of the unenforceable, nonindividual PAGA claims, the entire waiver provision is therefore unenforceable, rendering the entire Arbitration Provision null and void. (See *Viking River*, *supra*, at p. 647 [employer could enforce arbitration of just the individual PAGA claims where the arbitration agreement contained a “severability clause specifying that if the waiver was found invalid, any class, collectively, representative, or PAGA action would presumptively be litigated in court.”].) Accordingly, the Court declines to compel arbitration.

Based on the foregoing, the motion to compel arbitration and stay the action is DENIED. Given this ruling, any remaining arguments need not be addressed.

IV. CONCLUSION

The motion to compel arbitration and stay the action is DENIED. The Court will prepare the final order.

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Case No.:

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Calendar Line 11

Case Name:

Case No.:

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Calendar Line 12

Case Name:

Case No.:

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Calendar Line 13

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